

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NANCY LIMA,

Petitioner

VS.

XAVIER AGUIRRE,

Respondent

) Case Number: FPT-25-378752

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties to this proceeding are Petitioner/Mother, Nancy Lima, and Respondent/Father, Xavier Aguirre. There is one minor child subject to this proceeding named Elizabeth Paige Aguirre (12/22/15).
- 2) On February 11, 2026, Father filed a Request for Order seeking initial orders for:
 - a. Joint Legal and Joint Physical Custody of the minor child.
 - b. Parenting time each week from Friday after school to Monday morning to school.
- 3) On March 16, 2026, the Court held a readiness hearing and referred the parties to FCS Mediation to occur on April 14, 2026 and set a return hearing on April 23, 2026.
- 4) Mother did not file an opposition to Father's motion. *(The Court reviewed this case on April 9, 2026. The Court notes that an untimely Responsive Declaration was filed on April 15, 2026. The Court will not consider this untimely filing.)*

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Father's unopposed request for Joint Legal and Joint Physical custody is GRANTED. Both parents shall exercise Joint Legal and Joint Physical custody of the minor child.
- 3) Father shall have parenting time with the minor child on the 1st, 2nd and 4th weekends of each month from Friday after school until Monday morning drop off at school.
- 4) Mother shall have care and custody of the minor child at all other times.
- 5) The Court will prepare the Findings and Order After Hearing.